

Utility law now works to benefit Edison

Fine print in bill that Newsom signed shifts the costs of Eaton fire to ratepayers.

By MELODY PETERSEN

Standing behind a lectern emblazoned with the words “Cutting Utility Bills,” Gov. Gavin Newsom signed into law last month a package of energy bills that he said “reduces the burden on ratepayers.”

Tucked into one of those bills: a paragraph that could allow Southern California Edison to shift billions of dollars of Eaton fire damage costs to its customers.

Among other things, the bill allows Edison to start charging customers for any Eaton fire costs exceeding the state’s \$21-billion wildfire fund.

“I was shocked to see that,” said April Maurath Sommer, executive director of the Wild Tree Foundation, which tracks state government actions on utility-sparked fires. “It’s effectively a bailout.”

Other amendments in the 231-page bill known as SB 254 helped not just Edison, but all three of the state’s biggest for-profit utilities, further limiting the costs that they and their shareholders would face if the companies’ equipment ignited a catastrophic wildfire.

Previous legislation championed by Newsom, a 2019 bill known as AB 1054, already had sharply limited the utilities’ liabilities for wildfires they cause.

Staff in the governor’s office declined a request for an interview. In a statement, Daniel Villaseñor, a spokesman for Newsom, called SB 254 “smart public policy, not a giveaway.”

Newsom’s staff noted that the state Public Utilities Commission would later review Eaton fire costs, determining if they were “just and reasonable.”

If some costs billed to customers were rejected in that review, Edison shareholders would have to reimburse them for those amounts, the governor’s office said.

According to the legislation, that review of costs isn’t required until all Eaton claims are settled, leaving the possibility that customers would have to cover even costs found to be unreasonable for years.

“That will be expensive news to a lot of people,” said Michael Boccadoro, executive director of the Agricultural Energy Consumers [See Edison, A11]



Photographs by CARLIN STIEHL Los Angeles Times
JENNY MCKELLIPS, standing above a creek, top, says she’s battled for water rights for decades. Above, groundwater is pumped from a well owned by L.A.

Owens Valley tribes fight to reclaim ‘land of flowing water’

By IAN JAMES

BISHOP, Calif. — In a desert landscape dominated by sagebrush, a piece of Los Angeles’ immense water empire stands behind a chain-link fence: a hydrant-like piece of metal atop a well. The electric pump hums as it sends water gushing into a canal, forming a stream in the desert.

This well is one of 105 that

L.A. owns across the Owens Valley. They were drilled decades ago, many of them when the city opened a second giant pipeline, nearly doubling its famous aqueduct to send more water south.

While many Californians know the story of how L.A. seized the valley’s river water in the early 1900s and drained Owens Lake, fewer know that the city also pulls up a significant amount of

water from underground. The pumping has led to resentment among leaders of Native tribes, who say it is leaving their valley parched and harming the environment.

“We’ve seen so many impacts from groundwater pumping,” said Teri Red Owl, an Indigenous leader. “There’s a lot of areas that are dewatered, that are dried up.”

[See Groundwater, A9]

Shutdown stalls anti-Trump suits

The Justice Department gets a judge to pause states’ legal challenges with some lawyers being furloughed

By KEVIN RECTOR

Days before the Trump administration was supposed to file its response to a California lawsuit challenging its targeting of gender-affirming care providers, attorneys for the U.S. Justice Department asked a federal judge to temporarily halt the proceedings.

Given the federal shutdown, they argued, they just didn’t have the lawyers to do the work.

“Department of Justice attorneys and employees of the federal defendants are prohibited from working, even on a voluntary basis, except in very limited cir-

cumstances, including ‘emergencies involving the safety of human life or the protection of property,’” they wrote in their filing Oct. 1, the first day of the shutdown.

The district judge presiding over the case, which California filed in federal court in Massachusetts along with a coalition of other Democrat-led states, agreed, and promptly granted the request.

It was just one example of the now weeks-old federal shutdown grinding to a halt important litigation between California and the Trump administration, in policy battles with major implications for people’s lives.

The same day, in the same Massachusetts court, Justice Department attorneys were granted a pause in a lawsuit in which California and other states are challenging mass firings at the U.S. Department of Education, after noting that department funding had been suspended and it didn’t know “when such funding will be restored by Congress.”

The same day in U.S. District Court in Central California, the Trump administration asked for a similar pause in a lawsuit that it had brought against California, challenging the state’s refusal to provide its voter regis-

[See Shutdown, A7]

Additional \$828 million to be paid to abuse victims

By REBECCA ELLIS

Los Angeles County is poised to pay out an additional \$828 million to victims who say they were sexually abused in county facilities as children, months after agreeing to the largest sex abuse settlement in U.S. history.

The award, posted on the county claims board agenda Friday, would resolve an additional 414 cases that were not included in the \$4-billion sex abuse settlement approved this spring. Both the supervisors and the county claims board will need to vote on the payout before it is finalized.

It was not clear on Friday who would oversee the allocation of the new looming settlement or what the distribution and vetting process of the plaintiffs would be for those cases.

The record \$4-billion settlement covers more than 11,000 people who say they were abused inside county-run juvenile facilities and foster homes as children. The individual payouts in that case will range from \$100,000 to \$3 million.

The newest payout would break down to an average of roughly \$2 million per person. It involves cases from three prominent law firms: Manly, Stewart & Finaldi; Arias Sanguinetti Wang & Team; and Panish Shea Ravipudi.

The firms declined to comment on the potential settlement until the vote by the Board of Supervisors.

The flood of lawsuits began in 2020 after California passed a law extending the statute of limitations for survivors of childhood sexual abuse.

The three firms broke from the other attorneys suing the county during negotiations and declined to take part in the \$4-billion settlement, arguing they could land a better deal for their clients on their own.

The firms, each of which specializes in sex abuse cases, previously won massive settlements against the Catholic Church, former USC gynecologist George Tyndall, and the Moreno Valley School District for the sexual abuse of two students by a middle school teacher.

The announcement of a [See Settlement, A7]

A heightened sense of urgency around this ‘No Kings Day’

Trump’s policies have only become more aggressive since the June demonstrations.

By JENNY JARVIE AND NATHAN SOLIS

When millions of demonstrators took to the streets in June for “No Kings Day” — depicting President Trump as a wannabe monarch intent on violating American democratic norms — it was still fairly early in his administration.

The immigration raids in L.A. were just getting underway and Trump had deployed troops to the city to clamp down on protests.

But four months later,

many Americans feel Trump’s threats and norm-shattering actions have only gotten more intense as protesters prepare to take part Saturday in more than 2,700 demonstrations scheduled across the country.

In that period, the Trump administration has ramped up immigration raids across L.A. and Chicago and deployed National Guard troops to Washington, D.C. It has also pressured universities to comply with his agenda or lose funding, fired government officials he deems insufficiently loyal and embarked on an aggressive sweep of prosecutions of political opponents.

“We’re seeing an escalation, right?” said Hunter Dunn, a spokesman for [See Protests, A7]

Malibu seeks to crack down on illegal camping

City says homeless people pose a fire risk when cooking or keeping warm



GENARO MOLINA Los Angeles Times
DAVID VERWEY watches a man walking his dog at Legacy Park in Malibu.

By ANDREW KHOURI

On Monday morning, a homeless man sat in front of the county courthouse in Malibu, where he sleeps each night.

In front of him was a small, green propane tank affixed with a torch, which he said he uses to cook and form wood pipes for tobacco and cannabis.

A short walk away is Legacy Park, an oasis of coastal prairies, bluffs and native woodlands. The Santa Monica Mountains rose in the backdrop.

“Once in a while, somebody will see one of us cooking and they will call the ... fire department,” the homeless man said, who would give his name only as Daniel.

In Malibu, hard hit by the Palisades fire and long prone to wind-fueled conflagrations, elected officials and some residents increasingly fear their homeless neighbors [See Malibu, A9]



ROBERT GAUTHIER Los Angeles Times

A PENNANT IN MIND

The Dodgers flag waves Thursday before Game 3 of the NLCS. For full coverage of Game 4, visit latimes.com/dodgers or latimes.com/enewspaper.

Ex-cop arrested in Venice slaying

Former LAPD officer shot and killed an unarmed homeless man in Venice Beach in 2015. CALIFORNIA, B1

Weather

Lots of sunshine. L.A. Basin: 87/60. B8

Markets A11
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Trump hesitant to sell missiles

President signals to Zelensky that he’s leaning against moving Tomahawks. NATION, A8

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